

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
SHA-KING R. ROBINSON,

Plaintiff,

-against-

Index No.
Plaintiff designates
KINGS County
as the place of trial

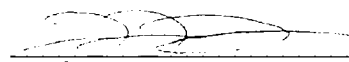
THE CITY OF NEW YORK, P.O. JORGE SANABRIA, Shield No.: 27752, Individually and in His Official Capacity, P.O. NELSON REYES, Shield No.: 27566, Individually and in His Official Capacity, D.T. WALTON RICHARDSON, Shield No.: 06037, Individually and in His Official Capacity, P.O.s "JOHN DOE" # 1-10, Individually and in Their Official Capacities, (the name John Doe being fictitious, as the true names are presently unknown),

SUMMONSThe basis of this
venue is where the
incident aroseDefendants.
-----X

TO THE ABOVE NAMED DEFENDANT(S):

- The City of New York – 100 Church Street, New York, NY 10007
- P.O. Jorge Sanabria (Shield #: 27752) – 1470 E New York Ave, Brooklyn, NY 11212
- P.O. Nelson Reyes (Shield #: 27566) – 1470 E New York Ave, Brooklyn, NY 11212
- D.T. Walton Richardson (Shield #: 06037) – 1470 E New York Ave, Brooklyn, NY 11212

YOU ARE HEREBY SUMMONED TO ANSWER the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
April 9, 2018**JON L. NORINSBERG, PLLC**

Jon L. Norinsberg, Esq.
Attorney for Plaintiff
225 Broadway, Suite 2700
New York, New York 10007
Tel.: (212) 791-5396
Fax: (212) 791-5396

Defendant(s)' Address:

The City of New York
100 Church Street
New York, NY 10007

P.O. Jorge Sanabria
1470 E. New York Avenue
Brooklyn, NY 11212

P.O. Nelson Reyes
1470 E. New York Avenue
Brooklyn, NY 11212

D.T. Walton Richardson
1470 E. New York Avenue
Brooklyn, NY 11212

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
SHA-KING R. ROBINSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. JORGE SANABRIA,
Shield No.: 27752, Individually and in His Official Capacity,
P.O. NELSON REYES, Shield No.: 27566, Individually
and in His Official Capacity, D.T. WALTON RICHARDSON,
Shield No.: 06037, Individually and in His Official Capacity,
P.O.s "JOHN DOE" # 1-10, Individually and in Their
Official Capacities, (the name John Doe being fictitious,
as the true names are presently unknown),

Defendants.
-----X

Plaintiff, SHA-KING R. ROBINSON, by his attorneys, Jon L. Norinsberg, PLLC,
complaining of the defendants, respectfully allege as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

PARTIES

2. Plaintiff is an African-American male and at all relevant times a resident of the County of Kings, in the City and State of New York.

3. Defendant, the City of New York, was and is a municipal corporation duly

COMPLAINT

**Plaintiff designates
Kings County as the
place for trial. The
basis of the venue as
Kings County is the
place where the
incident arose.**

organized and existing under and by virtue of the laws of the State of New York.

4. Defendant, the City of New York, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, the City of New York.

5. At all times hereinafter mentioned, the individually named defendants, P.O. JORGE SANABRIA, P.O. NELSON REYES, D.T. WALTON RICHARSON and P.O.s "JOHN DOE" # 1-10, were and still are individuals employed as police officers, detectives, agents and servants and/or employees of said department and were acting under the supervision of said department and according to their official duties.

6. At all times hereinafter mentioned, the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant, City of New York.

8. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment with defendant, City of New York.

FACTS

9. On or about August 23, 2015, at approximately 7:35 p.m., Plaintiff SHA-KING R. ROBINSON was a front passenger in a black Audi sedan (hereinafter "the Audi") traveling westbound on Livona Avenue in the vicinity of Christopher Street and Sackman Street, in the County of Kings, in the City and State of New York.

10. Plaintiff SHA-KING R. ROBINSON and three others were traveling in the Audi that the driver had just purchased from a dealership when they noticed an unmarked vehicle making a U-turn. Said unmarked vehicle flashed its undercover lights and sirens identifying itself as a police car and prompting the Audi to pull over.

11. At the stop, defendants P.O. Sanabria and P.O. Reyes approached the Audi under the pretext that the Audi was traveling at a high rate of speed. Defendant P.O. Sanabria asked the driver and everyone inside of the car whether any of them had been smoking or in possession of marijuana, which all occupants adamantly denied.

12. Subsequently, the defendant officers ordered everyone to remain in the Audi and returned to their unmarked car.

13. Thereafter, the defendant officers returned to the Audi and ordered the driver to step out of the Audi, and the remaining occupants to remain inside the Audi.

14. Before the stop, the Audi while traveling westbound on Livona Avenue was not traveling at high speeds. As such, the officers did not have a reasonable suspicion to believe that the driver of the Audi was breaking the law.

15. After the stop, the defendant officers did not have reasonable suspicion to believe Plaintiff SHA-KING R. ROBINSON or the three other occupants of the Audi had been smoking marijuana or any other drugs, prior to the stop.

16. After the stop, the defendant officers did not have reasonable suspicion to believe Plaintiff SHA-KING R. ROBINSON or the three other occupants of the Audi were in possession of marijuana or any other drug. Moreover, no physical evidence of marijuana or any other contraband was recovered from the scene, the Audi, Plaintiff SHA-KING R. ROBINSON or the three other occupants of the Audi.

17. After being unlawfully ordered to remain in the Audi, Plaintiff SHA-KING R. ROBINSON, fearing for his safety, stepped out of the Audi and ran from the scene. Defendant P.O. Sanabria chased Plaintiff and Plaintiff, before being caught, surrendered, was apprehended and placed in handcuffs.

18. Thereafter, the defendant officers, without a warrant, unlawfully arrested and searched Plaintiff SHA-KING R. ROBINSON, based on fabrications by defendants.

19. Specifically, defendant P.O. Sanabria falsely claimed that he had observed the outline of a firearm under Plaintiff's jeans. This was an outright fabrication.

20. Plaintiff SHA-KING ROBINSON was not carrying a firearm, nor was he carrying anything that remotely looked like a firearm.

21. At no time on June 23, 2015 did Plaintiff SHA-KING ROBINSON possess any weapon, much less a firearm.

22. There was no physical evidence connecting Plaintiff SHA-KING ROBINSON with the alleged firearm.

23. There was no DNA evidence connecting Plaintiff SHA-KING ROBINSON with the alleged firearm.

24. There was no forensic evidence connecting Plaintiff SHA-KING ROBINSON with the alleged firearm.

25. There were no fingerprints connecting Plaintiff SHA-KING ROBINSON with the alleged firearm.

26. In sum, there was *no evidence* whatsoever connecting Plaintiff SHA-KING ROBINSON to the alleged firearm.

27. In connection with this unlawful arrest, defendant P.O. Sanabria forwarded false

police reports to prosecutors in the Kings County District Attorney's Office, which contained multiple lies about the facts and circumstances surrounding Plaintiff's arrest.

28. As a result of the foregoing, Plaintiff SHA-KING R. ROBINSON was charged with Criminal Possession of a Weapon in the Third Degree (Penal Law § 265.01(1)), and other related charges.

29. Throughout the criminal proceedings, defendant P.O. Sanabria intentionally and purposefully made false statements under oath to the Grand Jury on July 29, 2015, and to the Judge in a Huntley, Dunaway, Mapp hearing ("Hearing") held in November 29, 2016 in the matter of The People of the State of New York v. Sha-King R. Robinson, Indictment Number 5814-2015.

30. Defendant P.O. Sanabria's falsehoods were criticized by the Honorable Ruth Shillingford following the Hearing. Therein, Judge Shillingford noted that P.O. Sanabria's hearing testimony regarding the alleged weapon was "diametrically opposed to that which he presented in the Grand Jury."

31. As such, the Court opined that defendant P.O. Sanabria's testimony was not credible and suppressed the gun that was allegedly recovered from Plaintiff.

32. Apart from being unlawfully arrested and maliciously prosecuted, Plaintiff SHA-KING R. ROBINSON was also subjected to excessive and unlawful force by defendants.

33. Specifically, at the time of the arrest, defendant P.O. Sanabria handcuffed Plaintiff and in doing so excessively tightened the handcuffs. Despite numerous pleas by Plaintiff to loosen the handcuffs, defendant P.O. Sanabria maliciously and intentionally, without just cause or provocation, forcibly maneuvered Plaintiff in an unreasonable fashion to inflict maximum pain. As a result of the foregoing, Plaintiff SHA-KING R. ROBINSON sustained

injuries to his wrist, including but not limited to, permanent scarring.

34. In addition to excessive force, Plaintiff was also subjected to an invasive strip search while in police custody.

35. As a result of his unlawful arrest, Plaintiff SHA-KING R. ROBINSON spent approximately ninety (90) days in jail and made numerous court appearances throughout a two-year period in order to defend himself against the baseless false charges against him that defendants had filed against him.

36. On April 6, 2017, all charges against Plaintiff SHA-KING R. ROBINSON were dismissed.

37. As a result of the foregoing, Plaintiff SHA-KING R. ROBINSON sustained, *inter alia*, loss of liberty, physical injuries, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

AS AND FOR A FIRST CLAIM FOR RELIEF
(Violation of the Civil Rights Pursuant to 42 U.S.C. §1983)

38. Plaintiff SHA-KING R. ROBINSON repeats and realleges each and every allegation set forth in paragraphs "1" through "37", as if more fully set forth at length herein.

39. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of law.

40. All of the aforementioned acts deprived Plaintiff SHA-KING R. ROBINSON of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

41. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and/or corrections officials, with all the actual and/or apparent authority attendant thereto.

42. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

43. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States.

44. The acts complained of deprived Plaintiff SHA-KING R. ROBINSON of his right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. To be free from searches not based upon probable cause;
- D. To be free from unwarranted and malicious criminal prosecution;
- E. To receive equal protection under the law; and
- F. To be free from excessive force.

45. As a result of the foregoing, Plaintiff SHA-KING R. ROBINSON has been damaged in the amount of TEN MILLION DOLLARS (\$10,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

AS AND FOR A SECOND CLAIM FOR RELIEF
(False Arrest Under 42 U.S.C. §1983)

46. Plaintiff SHA-KING R. ROBINSON repeats and realleges each and every allegation in paragraphs "1" through "45" of this Complaint as if the same were more fully set forth at length herein.

47. As a result of the aforesaid conduct by defendants, Plaintiff SHA-KING R. ROBINSON was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings, without probable cause privilege or consent.

48. The aforesaid actions by the defendants constituted a deprivation of the Plaintiff's rights, privileges and/or immunities secured by the Constitution and laws of the United States of America.

49. As a result of the foregoing, Plaintiff SHA-KING R. ROBINSON has been damaged in the amount of TEN MILLION DOLLARS (\$10,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

AS AND FOR A THIRD CLAIM FOR RELIEF
(Malicious Prosecution Under 42 U.S.C. § 1983)

50. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "49" with the same force and effect as if fully set forth herein.

51. Defendants misrepresented and falsified evidence before the District Attorney and Grand Jury

52. Defendants did not make a complete and full statement of facts to the District Attorney and Grand Jury.

53. Defendants withheld exculpatory evidence from the District Attorney and Grand Jury.

54. Defendants were directly and actively involved in the initiation of criminal proceedings against Plaintiff SHA-KING R. ROBINSON

55. Defendants lacked probable cause to initiate criminal proceedings against Plaintiff SHA-KING R. ROBINSON.

56. Defendants acted with malice in initiating criminal proceedings against Plaintiff

57. SHA-KING R. ROBINSON Defendants were directly and actively involved in the continuation of criminal proceedings against Plaintiff SHA-KING R. ROBINSON.

58. Defendants lacked probable cause to continue criminal proceedings against Plaintiff SHA-KING R. ROBINSON.

59. Defendants acted with malice in continuing criminal proceedings against Plaintiff SHA-KING R. ROBINSON.

60. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

61. As a result of the foregoing, Plaintiff SHA-KING R. ROBINSON has been damaged in the amount of TEN MILLION DOLLARS (\$10,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

AS AND FOR A FOURTH CLAIM FOR RELIEF
(Denial of Constitutional Right to a Fair Trial Under
42 U.S.C. § 1983 Based on Fabricated Evidence)

62. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "61" as if the same were more fully set forth at length herein.

63. Defendants created false evidence against Plaintiff SHA-KING R. ROBINSON.

64. Defendants forwarded false evidence and false information to prosecutors in the Kings County District Attorney's Office.

65. In creating false evidence against Plaintiff SHA-KING R. ROBINSON, in forwarding false evidence and information to prosecutors, and in providing false and misleading testimony, defendants violated Plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

66. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, and he was put in fear for his safety, was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

67. As a result of the foregoing, Plaintiff SHA-KING R. ROBINSON has been damaged in the amount of TEN MILLION DOLLARS (\$10,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

AS AND FOR A FIFTH CLAIM FOR RELIEF
(Malicious Abuse of Process Under 42 U.S.C. § 1983)

68. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "67" with the same force and effect as if fully set forth herein.

69. The aforementioned individual defendants issued legal process to place Plaintiff SHA-KING R. ROBINSON under arrest.

70. The aforementioned individual defendants arrested Plaintiff SHA-KING R. ROBINSON in order to obtain a collateral objective outside the legitimate ends of the legal process.

71. The aforementioned individual defendants acted with intent to do harm to Plaintiff SHA-KING R. ROBINSON, without excuse or justification.

72. As a result of the foregoing, Plaintiff SHA-KING R. ROBINSON sustained, *inter alia*, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

73. As a result of the foregoing, Plaintiff SHA-KING R. ROBINSON has been damaged in the amount of TEN MILLION DOLLARS (\$10,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

AS AND FOR A SIXTH CLAIM FOR RELIEF
(Excessive Force by the Police Under 42 U.S.C. §1983)

74. Plaintiff SHA-KING R. ROBINSON repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "73" as if the same were more fully set forth at length herein.

75. That on or about June 23, 2015, Defendant P.O. Sanabria handcuffed Plaintiff and in doing so placed the handcuffs excessively tight. Despite the numerous request made by Plaintiff to loosen the handcuffs, defendant P.O. Sanabria maliciously and intentionally, without just cause or provocation, disregarded Plaintiff's requests and forcibly tightened the handcuffs on Plaintiff, so as to inflict maximum pain.

76. As a result of the foregoing, Plaintiff SHA-KING R. ROBINSON sustained injuries to his wrist, including but not limited to, permanent scarring.

77. As a result of the foregoing, Plaintiff SHA-KING R. ROBINSON has been damaged in the amount of TEN MILLION DOLLARS (\$10,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

AS AND FOR A SEVENTH CAUSE OF ACTION
(Municipal Liability Under 42 U.S.C. §1983)

78. Plaintiff SHA-KING R. ROBINSON repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "77" as if the same were more fully set forth at length herein.

79. Defendants P.O. JORGE SANABRIA, P.O. NELSON REYES, D.T. WALTON RICHARSON and P.O.s "JOHN DOE" # 1-10 arrested and incarcerated Plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize Plaintiff's liberty, well-being, safety and constitutional rights.

80. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

81. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

82. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted a deliberate indifference to the safety, well-being and constitutional rights of Plaintiffs.

83. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiffs as alleged herein.

84. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiffs as alleged herein.

85. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, Plaintiff SHA-KING R. ROBINSON was falsely arrested and incarcerated for over two (2) years.

86. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of Plaintiff SHA-KING R. ROBINSON.

87. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of Plaintiffs' constitutional rights.

88. All of the foregoing acts by defendants deprived Plaintiff SHA-KING R. ROBINSON of federally protected rights, including, but not limited to, the right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. To be free from unwarranted and malicious criminal prosecution;
- D. Not to have cruel and unusual punishment imposed upon them; and
- E. To receive equal protection under the law.
- F. To be free from excessive force.

88. As a result of the foregoing, Plaintiff SHA-KING R. ROBINSON has been damaged in the amount of TEN MILLION DOLLARS (\$10,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

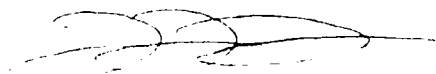
WHEREFORE, Plaintiff SHA-KING R. ROBINSON demands judgment against the defendants as follows:

- (1) On all causes of action, compensatory damages in the amount of \$10,000,000.00; and
- (2) On all causes of action, punitive damages in the amount of \$10,000,000.00.
- (3) Costs and disbursements of this action, including attorney's fees, and for such other
and further relief as to this Court may deem just and proper.

Dated: New York, New York
April 9, 2018

JON L. NORINSBERG, PLLC

BY:



Jon L Norinsberg, Esq.
Diego O. Barros, Esq.
Attorneys for Plaintiff
225 Broadway, Suite 2700
New York, N.Y. 10007
Tel.: (212) 791-5396
Fax: (212) 406-6890

Index No.**Year:**

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Sha-king R. Robinson,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. JORGE SANABRIA, Shield No.: 27752, Individually and in His Official Capacity, P.O. NELSON REYES, Shield No.: 27566, Individually and in His Official Capacity, D.T. WALTON RICHARDSON, Shield No.: 27566, Individually and in His Official Capacity, P.O.s "JOHN DOE" # 1-10, Individually and in Their Official Capacities, (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

SUMMONS AND COMPLAINT

JON L. NORINSBERG

Attorney for Plaintiff

Transportation Building
225 Broadway, Suite 2700
New York, NY 10007
Telephone (212) 791-5396